

Tentative Rulings for September 9, 2026 Department 1

**To request oral argument, you must notify Judicial Secretary
Crystal Marias at (760) 904-5722
and inform all other counsel no later than 4:30 p.m.**

This court follows California Rules of Court, Rule 3.1308 (a) (1) for tentative rulings (see Riverside Superior Court Local Rule 3316). Tentative Rulings for each law & motion matter are posted on the Internet by 3:00 p.m. on the court day immediately before the hearing at [Riverside Superior Court-Tentative Rulings](#). If you do not have Internet access, you may obtain the tentative ruling by telephone at (760) 904-5722.

To request oral argument, no later than 4:30 p.m. on the court day before the hearing you must (1) notify the judicial secretary for Department 1 at (760) 904-5722 and (2) inform all other parties of the request and of their need to appear remotely, as stated below. If no request for oral argument is made by 4:30 p.m., the tentative ruling **will become the final ruling** on the matter effective the date of the hearing. **UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.**

For information and instructions on remote appearances via **ZOOM**, visit the court's website at [Riverside Superior Court-Remote Appearances](#)

You may also make a Telephonic Appearance: On the day of the hearing, call into one of the below listed phone numbers, and input the meeting number (followed by #):

- Call-in Numbers: 1-833-568-8864 (Toll Free), 1-669-254-5252,
1-669-216-1590, 1-551-285-1373 or 1-646-828-7666
- Meeting Number: **160 638 4172**

Please **MUTE** your phone until your case is called and it is your turn to speak. It is important to note that you must call fifteen (15) minutes prior to the scheduled hearing time to check in or there may be a delay in your case being heard.

Riverside Superior Court provides official court reporters for hearings on law and motion matters only for litigants who have been granted fee waivers and only upon their timely request. (See General Administrative Order No. 2021-19-1) Other parties desiring a record of the hearing must retain a reporter pro tempore.

1.

CASE #	CASE NAME	HEARING NAME
CVRI2400546	OLIVAS VS L.E.R. LOUNGE, INC.	MOTION FOR PRELIMINARY APPROVAL

Tentative Ruling: Appearances requested to discuss:

1. Filing of FAC—apparently the Clerk’s office bounced it, as it did the proposed order.
2. No declaration from Apex.
3. Be sure the notice, objection, and exclusion forms are attached to proposed order, include description of Apex’s duties (CMO ¶ G.4.a-b, d.) Include in the proposed order that the Court has only determined that there is sufficient evidence to suggest that the settlement is fair, adequate, and reasonable, with a final determination to be made at the final approval hearing. (CMO ¶ G.5.c) Add to notice the full title and date of filing of the document to which the settlement agreement is attached and the court’s street and web addresses and the objection and opt out forms.
4. Limit PAGA release to named plaintiff and the state; perhaps add reference to *Arias v. Superior Court* (2009) 46 Cal.4th 969 (“a judgment in that action binds all those, including nonparty aggrieved employees, who would be bound by a judgment in an action brought by the government. . . . Accordingly, with respect to the recovery of civil penalties, nonparty employees as well as the government are bound by the judgment in an action brought under the act”).

2.

CASE #	CASE NAME	HEARING NAME
CVRI2407382	CLAYTON VS WABASH NATIONAL CORPORATION	HEARING ON FINAL APPROVAL

Tentative Ruling: Appearances requested to discuss:

1. Confirm that release applies only to claims actually alleged in the operative complaint and not to claims that *could* have been alleged. If there are such claims, perhaps amend the complaint.
2. Revise proposed judgment to delete prohibition on offering settlement agreement in another action—perhaps add that the parties have agreed to this. Judgment, ¶ 24.
3. Select date for review of report from administrator. Judgment, ¶ 25.

3.

CASE #	CASE NAME	HEARING NAME
CVRI2503727	MARTINEZ VS UNITED PRODUCTION FRAMING LLC	MOTION TO COMPEL ARBITRATION

Tentative Ruling: Appearances requested to discuss plaintiff's objection to the Garcia declaration submitted with the reply papers and if the Court considers it, what opportunity Martinez should have to respond.

4.

CASE #	CASE NAME	HEARING NAME
CVRI2600508	ORTIZ VS RIVERSIDE MARKET BROILER INC.	MOTION TO COMPEL ARBITRATION

Tentative Ruling: Appearances requested to discuss whether the Court should consider the Carillo and Bedolla declarations submitted with the reply papers and if the Court considers them, what opportunity Ortiz should have to respond.

5.

CASE #	CASE NAME	HEARING NAME
CVRI2603288	LABAJO VS LEWIS MANAGEMENT CORP.	DEMURRER

Tentative Ruling: No tentative ruling; appearances requested.